

HOW PARENTAL CONSENT WILL WORK

If a child wants to join any online portal, like social media or gaming apps, the platform will...

- Confirm that your child is under 18 years of age
- Ask you, as their parent or guardian, to provide consent
- Verify that you are an adult and their lawful parent or guardian
- If you're already a user of the same platform, they'll use your existing information (like your age and ID) to confirm you are an adult
- Otherwise, they will verify your details—Aadhaar, passport or other government-approved ID—through an authorised agency or digital service like a DigiLocker
- Platforms will also keep a record of your consent to comply with the law

CAN A CHILD BYPASS THIS PROCESS?

Platforms are required to take strong measures to prevent kids from lying about their age or using someone else's account. If a platform collects your child's data without your consent, they can face hefty fines of up to Rs 200 crore

WHY CRITICS ARE RAISING THE RED FLAG

These rules aim to implement the legislation in a way that protects individual privacy while fostering the country's innovation-driven digital economy. But critics have flagged some concerns...



- Lacks provisions for independent audits or compliance monitoring, raising questions about accountability
- Significant discretionary powers given to the government and data fiduciaries, including decisions on exemptions, data processing standards, localisation requirements
- The rules allow extensive data processing by the government for issuing subsidies, benefits or services. These provisions lack specificity and may be misused
- Government entities can retain personal data indefinitely, regardless of whether the purpose for collection has been fulfilled. This contravenes data minimisation principles
- The requirement for verifiable parental consent is impractical, risks mass surveillance by linking government IDs to online credentials
- Blanket obligations may strain smaller organisations and startups, especially when uniform penalties are imposed without considering the entity's size or the breach's scale
- The consultation process accessible only in English and Hindi, excluding large sections of the population

Note: The draft Digital Personal Data Protection Rules 2025 are open to public feedback till February 18. You may visit innovateindia.mygov.in/dpdp-rules-2025